

		website and the case documents can be accessed for at least 180 days following its entry by the court. <u>As to the proposed order:</u> 16. The proposed order should be revised consistent with the above. ROA 53. 17. The document footer should mirror the document title, i.e., “and PAGA Settlement.” 18. Paragraph 3 appears to provide that \$50,000 will be paid upon entry of the order, which is inconsistent with the settlement. If that is not the intent, the paragraph should be deleted. 19. Include the terms of the installment plan. ¶ 6. 20. The same issues above pertain to the definitions of “Released Parties” and “Released Class Claims.” ¶ 6. 21. Remove plaintiff’s release. ¶¶ 6(b), (i). 22. “Action” is misspelled. ¶ 10. 23. The same issues above apply to the Response Deadline.” ¶ 14. 24. Propose a date for a final approval hearing. ¶ 14. 25. Delete paragraph 17. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any revised settlement documents and file a proof of service.
6	30-2024-01423919 McCain vs. Infinitie Electronics International, Inc.	The hearing on plaintiff’s motion for preliminary approval of a class action and PAGA settlement is CONTINUED to October 26, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief must be filed at least 16 days before the hearing and must address as necessary each of the below points. The parties must also provide redlined versions of any revised documents and revised settlement provisions.

		The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of an \$500,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The court will not approve a settlement with uncertain end dates for Class or PAGA Periods. Per an express obligation of the settlement, "Defendant agree[d] to inform Plaintiff which option [as to the escalator] it intends to exercise before the filing of the Motion for Preliminary Approval." ¶ 9.1. 2. All settlement approvals require plaintiff to disclose whether any fee-sharing or referral agreements apply to the action. CRC, Rule 3.769. 3. Plaintiff must provide the estimated high and low individual class and PAGA awards, which should be available once the Class and PAGA Period end dates are certain. 4. The "Response Deadline" should include disputes. ¶ 1.46. 5. It is for the court, not the administrator, to make any "final" determinations. ¶¶ 8.5(b), 8.8(c). 6. The "Released Parties" provision (¶ 1.44) is vague and overbroad to the extent it includes unidentified third parties, including "attorneys, insurers, predecessors, successors, assigns, parents, affiliates and subsidiaries." 7. While the court will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. At final approval, plaintiff's counsel should address whether any such unique circumstances exist here. 8. While the court will not determine the amount of any enhancement award to be paid to plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. At final approval, plaintiff should
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		address whether any such unique circumstances exist here. Plaintiff should also provide his anticipated total compensation to be received (including for any individual claims and excluding any enhancement payment). <u>As to the notice:</u> 9. The notice should be revised consistent with the above. ROA 70 Ex. 1(A). 10. Define “Action” as “class action and PAGA lawsuit.” At 1. 11. The same issue above applies to the PAGA and Class Period end dates. 12. Correct the court’s address. At 3. 13. Define “Settlement” as “proposed class action and PAGA settlement.” § 1. 14. Change “a good deal” to “fair.” § 1. 15. Delete the following paragraph in its entirety: “Defendant denies that it has done anything wrong and disputes all the claims in the Action. For example, Defendant contends that Plaintiff and the Class Members were, at all times, properly compensated for wages and reimbursed for required expenses under California law; that Plaintiff and the Class Members were provided with meal and rest periods in compliance with California law; that Defendant did not fail to pay to Plaintiff or any Class Members any wages allegedly due during employment and at the time of their termination; that Defendant complied with California wage statement and record requirements; that Defendant did not violate California Business and Professions Code section 17200 et seq.; that Defendant is not liable for any of the penalties sought or that could have been sought in the Action; and that this Action cannot be maintained as a class or representative action.” § 2. 16. The same issue above applies to the definition of “Released Parties” § 4.
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		17. The submission of documents supporting a dispute should be revised to reflect “with any supporting documents, if available, to the Administrator...” § 5. 18. Inform class members the court will make the ultimate determination of the validity of a request for exclusion. § 7. 19. Correct the court’s address. § 9. 20. Inform the class and aggrieved employees the final judgment will be posted to the website and the documents can be accessed for at least 180 days following its entry by the court. <u>As to the proposed order:</u> 21. The proposed order should be revised consistent with the above. ROA 63. 22. The same issue as above applies to the Class Period and PAGA Period end dates. ¶¶ 5, 6. 23. The same issue as above applies to the definition of “Released Parties.” ¶ 7(a). 24. Remove plaintiff’s release. ¶¶ 7(b), (1). 25. Include the definitions of “Released PAGA Claims” and “Released PAGA Claims.” ¶¶ 7(c), (d). 26. A service payment is not intended to compensate plaintiff for a general release. ¶ 10. 27. Identify that the attached notice includes a translation. ¶ 14. 28. Propose a date for a final approval hearing. ¶ 16. 29. Delete paragraph 18. 30. Include a paragraph providing for the court’s continuing jurisdiction. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any revised settlement documents and file a proof of service.
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